

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.				1. REQUISITION NUMBER		PAGE 1 OF 47							
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER N6945026Q0003		6. SOLICITATION ISSUE DATE					
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Lea Cook				b. TELEPHONE NUMBER (No collect calls) 6016792804		8. OFFER DUE DATE/ LOCAL TIME 05 Apr 2026 05:00 PM					
9. ISSUED BY NAVFACSYS COM SOUTHEAST COMMANDING OFFICER, B-903 YORKTOWN NAS JACKSONVILLE, FL 32212-0030 UNITED STATES Lea Cook, Email: lea.m.cook.civ@us.navy.mil Telephone: 6016792804				CODE N69450		10. THIS ACQUISITION IS ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 561790 SIZE STANDARD: USD 9,000,000.00							
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☒		13b. RATING DO-C3 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)							
15. DELIVER TO See Continuation				CODE		16. ADMINISTERED BY CODE							
17a. CONTRACTOR/ OFFEROR CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE									
TELEPHONE NUMBER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM									
19. ITEM NUMBER		20. SCHEDULE OF SUPPLIES/SERVICES See Continuation (Use Reverse and/or Attach Additional Sheets as Necessary)				21. QUANTITY		22. UNIT		23. UNIT PRICE		24. AMOUNT	
25. ACCOUNTING AND APPROPRIATION DATA See Continuation						26. TOTAL AWARD AMOUNT (For Government Use Only)							
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☒ ARE ☐ ARE NOT ATTACHED ☐ ARE ☐ ARE NOT ATTACHED							
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED						☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: See Continuat							
30a. SIGNATURE OF OFFEROR/CONTRACTOR						31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)							
30b. NAME AND TITLE OF SIGNER (Type or print)				30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)				31c. DATE SIGNED			

Solicitation/Contract Form Continuation

Commercial Kitchen Exhaust System Cleaning and Maintenance Services

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Base Year: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect seven commercial kitchen exhaust systems located at Naval Air Station Meridian's Roy M. Wheat Dining Hall, building 257. The line-item price is inclusive of all associated costs to service each system four times (quarterly) during the yearly performance period. Pricing Arrangement: Firm Fixed Price	4	Quarter		
0002	Base Year: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect two commercial kitchen exhaust systems, at Fire Station 1, building 51, located at Naval Air Station Meridian, Mississippi and Fire Station 2, building 115 located at Outlying Joe Williams Field in DeKalb, Mississippi. The line-item price is inclusive of all associated costs to service each system twice during the yearly performance period (semi-annually). Pricing Arrangement: Firm Fixed Price	2	Semiannual		
Option Line Item 0003	Option Year 1: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect seven commercial kitchen exhaust systems located at Naval Air Station Meridian's Roy M. Wheat Dining Hall, building 257. The line-item price is inclusive of all associated costs to service each system four times (quarterly) during the yearly performance period. Pricing Arrangement: Firm Fixed Price	4	Quarter		
Option Line Item 0004	Option Year 1: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect two commercial kitchen exhaust systems, at Fire Station 1, building 51, located at Naval Air Station Meridian, Mississippi and Fire Station 2, building 115 located at Outlying Joe Williams Field in DeKalb, Mississippi. The line-item price is inclusive of all associated costs to service each system twice during the yearly performance period (semi-annually). Pricing Arrangement: Firm Fixed Price	2	Semiannual		
Option Line Item 0005	Option Year 2: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect seven commercial kitchen exhaust systems located at Naval Air Station Meridian's Roy M. Wheat Dining Hall, building 257. The line-item price is inclusive of all associated costs to service each system four times (quarterly) during the yearly performance period. Pricing Arrangement: Firm Fixed Price	4	Quarter		

Option Line Item 0006	Option Year 2: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect two commercial kitchen exhaust systems, at Fire Station 1, building 51, located at Naval Air Station Meridian, Mississippi and Fire Station 2, building 115 located at Outlying Joe Williams Field in DeKalb, Mississippi. The line-item price is inclusive of all associated costs to service each system twice during the yearly performance period (semi-annually). Pricing Arrangement: Firm Fixed Price	2	Semiannual		
Option Line Item 0007	Option Year 3: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect seven commercial kitchen exhaust systems located at Naval Air Station Meridian's Roy M. Wheat Dining Hall, building 257. The line-item price is inclusive of all associated costs to service each system four times (quarterly) during the yearly performance period. Pricing Arrangement: Firm Fixed Price	4	Quarter		
Option Line Item 0008	Option Year 3: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect two commercial kitchen exhaust systems, at Fire Station 1, building 51, located at Naval Air Station Meridian, Mississippi and Fire Station 2, building 115 located at Outlying Joe Williams Field in DeKalb, Mississippi. The line-item price is inclusive of all associated costs to service each system twice during the yearly performance period (semi-annually). Pricing Arrangement: Firm Fixed Price	2	Semiannual		
Option Line Item 0009	Option 4: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect seven commercial kitchen exhaust systems located at Naval Air Station Meridian's Roy M. Wheat Dining Hall, building 257. The line-item price is inclusive of all associated costs to service each system four times (quarterly) during the yearly performance period. Pricing Arrangement: Firm Fixed Price	4	Quarter		
Option Line Item 0010	Option Year 4: The contractor shall provide all qualified labor, material, and equipment needed to clean and inspect two commercial kitchen exhaust systems, at Fire Station 1, building 51, located at Naval Air Station Meridian, Mississippi and Fire Station 2, building 115 located at Outlying Joe Williams Field in DeKalb, Mississippi. The line-item price is inclusive of all associated costs to service each system twice during the yearly performance period (semi-annually). Pricing Arrangement: Firm Fixed Price	2	Semiannual		

Continuation of Description

PERFORMANCE WORK STATEMENT

COMMERCIAL KITCHEN EXHAUST SYSTEM CLEANING AND MAINTENANCE SERVICES

NAVAL AIR STATION MERIDIAN, MISSISSIPPI AND OUTLYING JOE WILLIAMS FIELD DEKALB, MS

SERVICE DESCRIPTION

The contractor shall furnish all labor, materials, and equipment needed to clean and inspect nine commercial kitchen exhaust systems at three government facilities. The contractor must comply with National Fire Protection Association (NFPA) 96 - Standard for Ventilation Control and Fire Protection of Commercial Cooking Operations when servicing each kitchen exhaust system. Satisfactory or unsatisfactory service performance is determined by a government assessment of the contractor's ability to comply with contract requirements and adhere to NFPA 96 standards. The service objective is to mitigate fire hazards caused by an accumulation of combustible materials in the ventilation spaces where food cooking equipment is utilized.

SERVICE LOCATIONS

Of the three facilities serviced through this contract action, two facilities are located at Naval Air Station Meridian, Mississippi and one facility is located at Outlying Joe Williams Field in Dekalb, Mississippi. Joe Williams Field is roughly 30 to 40 miles from Naval Air Station Meridian, MS. Any costs related to travel must be included in the contractors' proposed price.

Fire Station #1: Building 51 Naval Air Station Meridian, Mississippi

- Number of Systems: 1
- Service Frequency: bi-annually (x2 per year)
- System Description: EconAir Hood Exhaust; Loren Cook Fan Model 150V13D

Roy M. Wheat Dining Facility: Building 257 Naval Air Station Meridian, Mississippi (7 systems total)

- Number of Systems: 2
- Service Frequency: quarterly (x4 per year)
- System Description: Gaylord ELX Series Ventilation model ELX-GBD-BBC-CL-AS

- Number of Systems: 5
- Service Frequency: quarterly (x4 per year)
- System Description: CaptiveAire model 6030 ND-2

Fire Station #2 : Building 115 Outlying Joe Williams Field, Dekalb, Mississippi

- Number of Systems: 1
- Service Frequency: bi-annually (x2 per year)
- System Description: CaptiveAire model 4824 ND-2-PSP-F

TECHNICAL DEFINITIONS

Grease and Vapor Exhaust Duct Systems: Shall comprise the entire duct system in its entirety, including hoods, filters, ducting, and exhaust fans, and all other appurtenances thereto (except minor interiors).

Exhaust Fans: Shall comprise the complete fan assembly, including the structural frame assembly, housing, fan blades, shafts, pulleys, braces, louvers, and all other appurtenances thereto (except motor interiors).

Hoods and Canopies: Shall comprise the sheet metal protection together with bracing and hangars, which cover stoves, grills, ovens, furnaces, dishwashers, pot washers, steam tables or other cooking equipment, and collects and diverts vapors into the duct system.

Cleaning: Shall comprise the complete removal and disposal of all grease, dirt, dust, lint, and other combustible foreign matter from the interior and exterior of all installed equipment to be serviced.

MISCELLANEOUS SERVICE DETAILS

The contractor must use protective coverings like drop cloths and shields to prevent overspray, debris, or damage to surrounding surfaces and equipment. The contractor is permitted to temporarily relocate easily mobile furniture or equipment that might obstruct its ability to access the designated service area. The contractor must certify that all chemicals utilized in the performance of this work will be non-toxic, non-corrosive, odorless, and of non-flammable standards.

Any access panels or openings required for physical entry into portions of the grease exhaust systems should be made and installed by the contractor at no additional cost to the government. The installation of access panels shall consist of installing a standard opening in the duct system, whereby cleaning can be accomplished. Such openings shall be fitted with sheet metal covers tightly installed and caulked to prevent a bypass of air and seepage of accumulated grease. Contractor inflicted damage to duct or exhaust systems shall be promptly repaired by a skilled individual at no additional expense to the government.

Following service performance, the contractor must return any relocated items to their original positions. The contractor must ensure that the service area resembles the same state of cleanliness as before services started. When all cleaning procedures are completed, electrical switches, detection devices, and system components, shall be returned to an operable state by qualified personnel. Cover plates shall be replaced and dampers and diffuses shall be positioned for proper airflow.

Access panels or openings required for physical entry into portions of the grease exhaust systems shall be made and installed by the contractor at no additional cost to the government. The installation of access panels shall consist of installing a standard opening in the duct system, whereby cleaning can be accomplished. Openings shall be fitted with sheet metal covers, tightly installed, and caulked to prevent a by-pass of air and seepage of accumulated grease. Damage to duct or exhaust systems by the contract shall be promptly repaired by a skilled individual at no additional cost to the government.

The contractor must inspect attic and roof areas to identify grease or other flammable materials that must be removed prior to government acceptance and inspection. All materials removed from the exhaust systems shall be collected and properly disposed of away from the facility. Thoroughly clean and replace grease and vapor exhaust system filters. The contractor will ensure exhaust systems function properly before departing the facility.

LENGTH OF CONTRACT

The contract consists of a base year and four outlying option years. The contract has a potential duration of five years. The base year begins on the date of contract award and expires after one year (365 days), unless the government elects to exercise the next available option period, renewing the contract for a consecutive service year. Outlying option years are not guaranteed. While the government intends to exercise each option year the decision is contingent upon the continued service needs of the government and the contractor maintaining satisfactory performance during the prior service year. If the contractor routinely exhibits unsatisfactory service performance the government can forgo exercising future option years and allow the contract to expire. Although options are not guaranteed, this is a firm fixed price contract which requires the contractor to price the base year and each outlying option year when responding to the solicitation. Any offeror who fails to provide the price for the base year and each option year is considered ineligible for award. All priced items are incorporated into the contract at award and shall remain fixed throughout the life of the contract. Post-award price changes related to insufficient, deficient, or omissions in pricing are prohibited.

INSURANCE

FAR clause 52.228-5 is a term and condition of the subject contract The contractor must adhere to all insurance requirements expressed within the clause cited below.

Insurance Work on a Government Installation (Jan 1997)

a. The contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract.

b. Before commencing work under this contract, the contractor shall notify the contracting officer in writing that the required

insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective-

(1) For such period as the laws of the State in which this contract is to be performed prescribe; or

(2) Until 30 days after the insurer or the contractor gives written notice to the contracting officer, whichever period is longer.

c. The contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a government installation and shall require subcontractors to provide and maintain the insurance required in the schedule or elsewhere in the contract. The contractor shall maintain a copy of all subcontractors' proofs of required insurance and shall make copies available to the contracting officer (KO) upon request.

The contractor must provide the KO with an electronic copy of their certificate of insurance (COI) within 10 days of the contract award date, onset of an option, or any time an insurance policy changes or renews.

GOVERNMENT FURNISHED ITEMS

The contractor may dispose of solid non-hazardous waste in government furnished waste containers located outside of each facility. However, the contractor must avoid damaging waste containers and disposing of soluble, combustible or prohibited materials. Should the contractor fail to handle waste containers with care the government may restrict access to the units and require the contractor to dispose of its waste off-site. The government will furnish water and electrical utilities at existing outlets as may be required for contractor service performance. Water and electrical utilities will be supplied by the government to the contractor at no cost. Contractor misuse of government furnished utilities can result in a loss of access. The contractor must supply and maintain any service line extensions needed to reach each service site from an existing utility outlet. Any expenses related to service line extensions must be included in the offers' proposed price. No government furnished office space will be provided to the contractor in connection with this contract.

CONTRACTOR FURNISHED ITEMS

The contractor must provide all necessary labor, materials, and equipment required to satisfactorily clean and maintain all commercial kitchen exhaust systems serviced under the contract. The contractor is responsible for protecting its furnished supplies, materials, tools, equipment, and the personal property of its employees from loss, damage, or theft. The government is not liable for lost or stolen property.

SERVICE SCHEDULE

The contractor must provide a yearly service schedule within 10 days of contract award or exercise of an option. The contractor must submit an electronic copy of the schedule to the Contracting Officer (KO) and Contracting Officers Representative (COR) to review and approve. The government must return written approval of the schedule before the contractor can proceed with onsite activities. Requests to change the approved schedule must be submitted in writing to the KO and COR 10 days prior to the effective date of the proposed change. The government must approve scheduling changes before they can take effect. Scheduling changes are not guaranteed. Only scheduling changes which are in the best interest of the government will be approved.

Service events must not interfere with government operations. The Roy M. Wheat Dining Facility (Building 257) daily operational hours are 4:00am-6:00pm. The contractor is prohibited from servicing building 257 during operational hours or on weekends. The contractor must coordinate building 257 services to occur on weekdays between 7:00pm to 3:30am. Any service schedule proposing to clean building 257 on Saturday, Sunday, a federally observed holiday or between the hours of 4:00am to 6:00pm CST will be denied. Services performed at buildings 51 and 105 may be permitted during normal working hours as long as scheduled service events do not interfere with government operations.

Requests to work outside of the hours mentioned above must be sent in writing to the KO and COR 10 days prior to a planned service event. The government must return written approval of a request before the contractor can proceed with onsite activities. The contractor must utilize the installation commercial access gate during normal operational hours, which are Monday to Friday, 6:00am to 4:00pm. The contractor may only access the installation through the main gate after hours, from 5:00pm to 5:59am. Gate hours are subject to change, so the contractor must verify the gate hours with the COR prior to each scheduled service.

PERMITS, CERTIFICATIONS, AND LICENSES

The contractor shall include in its price any costs related to maintaining proper licenses, permits, or certifications which are considered essential aspects of service performance. Per NFPA 96 (Section 11.6) all kitchen exhaust systems serviced under this contract must be cleaned by a properly trained and qualified person who holds an active certification from a recognized industry organization. Within 10 days of the contract award date the contractor must provide the KO and COR electronic copies of all

valid licenses, permits, and certifications. In the event of prime contractor or subcontractor personnel changes, electronic copies of updated licenses, permits, and certifications must be supplied within 10 days of the date the personnel change took effect. Services performed by an unqualified individual is prohibited.

SAFETY CONTROLS AND ACCIDENT REPORTING

The contractor must adhere to all pertinent provisions and associated amendments of the United States Army Corps of Engineers Manual, EM 385-1-1, "Safety and Health Requirements Manual". The contractor must also adhere to all applicable OSHA mandates and any other accident prevention measures deemed reasonably necessary by the KO.

The contractor can submit an abbreviated accident prevention plan (APP), in lieu of a fully developed APP. Instructions for creating an abbreviated APP can be found within EM 385-1-1 Appendix A. Visit the following website to obtain instructions, templates, and any applicable checklists, https://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf. The contractor must institute safety controls to protect the life and health of its employees and others. When employing subcontractors the prime contractor is ultimately responsible for ensuring that its personnel and any subcontracting personnel comply with the contractor's approved safety plan, EM 385-1-1 provisions, OSHA regulations, as well as all local, state, and federally mandated safety regulations.

The contractor's APP must include safety precautions related to confined spaces, fall protection, and any other safety hazards that relate to the nature of service work performed in connection with this contract. To comply with EM3851-1 safety requirements, individuals who work around a confined space must be trained to a level of awareness that will ensure they can identify and avoid confined spaces. Contractor compliance with EM 385-1-1 Chapter 34 Confined Space and OSHA 1910.146 safety procedures, permitting, monitoring, training, signage, plans, submittals, reporting, required documentation, checklists, logs, surveys, evaluations, and testing requirements is mandatory. Work in a confined space must comply with local, state, and federal laws not specifically expressed in the contract but are mandatory for any individual who services commercial kitchen exhaust systems.

The contractor's APP must also include safety precautions related to fall protection. To comply with EM3851-1 safety requirements individuals who work at heights more than 6ft, are exposed to fall hazards, or use fall protection equipment must be trained to a level of awareness that will ensure their personal safety and the safety of others. Contractor personnel and subcontracting affiliates must comply with EM 385-1-1 Section 21 Fall Protection and OSHA General Industry Fall Protection standards found in 29 CFR 1910 subparts D & I. The contractor must supply a written Accident Prevention Plan (APP) & Activity Hazard Analysis (AHA) which must be approved by the COR before onsite activities can begin.

The contractor will maintain an accurate record of any mishap resulting in death, traumatic injury, minor injury, occupational disease, damage property, spills, or vehicular incidents, that occur while on a government installation. The contractor will provide written mishap reports to KO and COR immediately after all safety threats are abated. Reporting mishaps connected to this contract does not relieve the contractor of its obligation to fulfill reporting requirements mandated by local, state, or federal entities.

If personnel fail to comply with accident preventative measures stated in the contractor's approved safety plan the KO or COR will document the occurrence and issue a letter of noncompliance. The KO or COR are authorized to stop service performance if contractor personnel are found performing work in an unsafe manner. The contractor must ensure its personnel and subcontracting personnel comply with the approved APP and AHA. At regular intervals during the service year the contractor will coordinate safety meetings with the COR to discuss and develop a mutual understanding of safety program administration.

WASTE MANAGEMENT

Comply with all Federal, State, and Local regulations to include but not limited to the following:

This project does not involve hazardous waste nor is the contractor permitted to utilize hazardous products or chemicals during service performance. If hazardous waste is encountered, stop work, safely disengage, and notify KO and COR. All non-hazardous waste collected during service performance must be disposed of in regulated landfills in accordance with government regulations. The contractor shall obtain the signature of the NAS Meridian Environmental Protection Specialist on waste manifests before transporting non-hazardous solid waste off the installation. Copies of completed manifest, weight tickets, or waste logs must be provided electronically to the KO, COR, and Installation Waste Program Manager.

At least 10 days before services begin, the contractor must send the KO and COR written copies of Safety Data Sheets (SDS), indexing all anticipated products or chemicals to be used during service performance as well as instructions to protect personnel and property during transit of non-hazardous material, spill response procedures, waste disposal procedures, and a waste management training plan. Material submittals must be approved by the government.

INSTALLATION REGULATIONS

Contractor personnel shall obey installation regulations, keep within the limits of the work, and avoid restricted areas unless work requirements necessitate access and personnel are properly cleared for entry. The contractor shall conspicuously mark its equipment for easy identification.

QUALITY CONTROL AND SUPERINTENDENT

The contractor must control the quality of its services. Written quality control reports must be sent to the KO and COR each time services are performed. Reports are prepared, signed, and dated by the contractor or their designated superintendent. The contractor or superintendent must remain onsite while services are performed. The contractor must designate their superintendent in writing and submit the designation letter to the KO and COR 10 days prior to performing onsite work. The superintendent designation letter details the individual's scope of responsibility, experience, qualifications, and authority to act on behalf of the contractor. If the contractor changes superintendents a revised letter must be provided to the government 10 days prior to the next service event. No work is permitted without a designated superintendent.

DAMAGE TO GOVERNMENT PROPERTY

Extreme care shall be exhibited by contractor personnel to avoid damage to government property. The contractor is legally and financially liable for any damages caused by its personnel. The contractor shall not alter or damage existing work. If existing work is damaged during service performance the contractor must offer repair or replacement to match existing or adjoining work. If unforeseen deteriorated material of a major nature is uncovered during service performance, stop work and immediately notify the KO COR. When contractor personnel damage government property or existing work the contractor must send a written report to the KO and COR within 24 hours of the occurrence. Damage reports must state the date, time, location, property description, magnitude of damage, and personnel involved.

INVOICING AND PAYMENT PROCEDURES

The contractor must request payment for services through the Wide Area Workflow (WAWF) module of the Procurement Integrated Enterprise Environment (PIEE) at <https://piee.eb.mil/>. The contractor cannot initiate a payment request before the work is complete. The earliest that a payment request can be submitted is the day after government acceptance. See DFARS 252.232-7006 for more information regarding invoicing procedures.

Each payment request must include the support documentation listed below:

1. Digital Invoice - upload a pdf. or jpeg. billing summary. Summary must be provided on a company letterhead, state the dates and times of the service event, locations serviced, the billable amount for each location, and the total billable amount for the service event.
2. Detailed Cleaning Logs - upload a copy of the log to payment request as verification that the work is complete.

*Contract invoicing procedures do not relieve the contractor of its responsibility to leave physical copies of cleaning logs and certificates at each service site for inspection by the Fire Inspector.

INSPECTION-ACCEPTANCE OF WORK

Services rendered under this contract are subject to government inspection during the performance of services and after service completion. All unsatisfactory or incomplete work shall be made satisfactory to the KO or COR before services are accepted by the government. All costs associated with rework are the responsibility of the contractor. The contractor shall accompany the COR on a joint final inspection of all completed work prior to departing the installation. It is the contractor's responsibility to schedule all inspections with the COR. Payment for services rendered is only authorized after the government inspects the work product, deficient items are corrected, and the government accepts the work satisfactory. The contractor is not entitled to receive payment until the Government accepts the work as satisfactory. See FAR 52.246-4 for further details regarding the inspection of services.

CONSEQUENCES FOR FAILURE TO PERFORM

The contractor is required to satisfactorily complete all services as specified in the contract. The government has the authority to seek indemnity for any services deemed non-conforming, incomplete, or unsatisfactory. The government will provide the contractor with a written notice of any service deficiencies before making deductions or assessing financial damages. The government will pursue indemnification as authorized in FAR 52.212-4.

Included below is a brief summary of potential outcomes for failing to perform:

1. Reduced Payment: The government is authorized to reduce the full payment amount to recoup the financial loss from services deemed non-conforming, incomplete, or unsatisfactory.
2. Reperformance: The government is authorized to direct the contractor to partially or fully repeat services to correct non-conforming, incomplete, or unsatisfactory services at no additional cost to the government. Reperformance must occur within 24 to 48 hours.
3. CPARS: The government is authorized to document performance through initiating a performance evaluation in the Contractor Performance Assessment Reporting System.
4. Contract Termination: The government is authorized to terminate a contract for cause, which releases the government from liability to the contractor for any amount of supplies or services not accepted, and the contractor shall be liable to the government all rights and remedies provided by law.

INSTALLATION ACCESS

Any contractor seeking access to NAS Meridian must obtain a Defense Biometric Identification System (DBIDS) credential. DBIDS credentials are only valid for a period of six months to one year, after which time the DBIDS credential expires. To avoid interruptions when accessing the installation, it is imperative that an individual renew their DBIDS credential several days prior to its expiration date. The NAS Meridian, MS visitor control center processes DBIDS requests on behalf of the installation and its hours of operation are Monday through Friday, 6:00am to 3:30pm, except for federally observed holidays when the office is closed. The DBIDS credentialing process involves photo, fingerprinting, base restrictions, and background screening. Upon successful completion of the aforementioned items a DBIDS card will be issued. The contractor must contact the COR to request assistance with coordinating DBIDS requests.

To obtain a DBIDS credential the following items are required:

1. Letter or official document from the government sponsor supporting the access request
2. Present a valid federal or state issued identification (i.e. passport or Real ID Act-compliant driver's license)
3. Completed SECNAV 5512/1

PRE-PERFORMANCE CONFERENCE

Prior to commencing work, the contractor shall arrange a formal meeting with the KO and COR to discuss the performance work statement, introduce any subcontracting affiliates, and develop a mutual understanding of service performance standards and work schedule requirements. All invoices and payment transactions will comply with the PIEE WAWF payment clause stated within the contract.

***** End of Section *****

Requirements

Commercial Kitchen Exhaust System Cleaning and Inspection Services

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601
0002	Inspection and Acceptance Location Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601
Option Line Item 0003	Inspection and Acceptance Location Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601
	Inspection and Acceptance Location

Option Line Item 0004	Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601
Option Line Item 0005	Inspection and Acceptance Location Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601
Option Line Item 0006	Inspection and Acceptance Location Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601
Option Line Item 0007	Inspection and Acceptance Location Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES

	James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601
Option Line Item 0008	Inspection and Acceptance Location Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601
Option Line Item 0009	Inspection and Acceptance Location Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601
Option Line Item 0010	Inspection and Acceptance Location Both Other Instructions: COR will inspect and accept work on behalf of the government. Inspection and acceptance must comply with the contract performance work statement. DoDAAC: N44219 CountryCode: USA NAVFAC SOUTHEAST PWD MERIDIAN 229 ALLEN RD, BLDG 427 NAS MERIDIAN MERIDIAN, MS 39309-5427 UNITED STATES James Hunt, Contracting Officers Representative (COR) Email: james.l.hunt40.civ@us.navy.mil Telephone: 6016793601

Continuation of Deliveries or Performance

Overall Contract Delivery Period

Contractor

Other

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 17 Apr 2026 To 16 Apr 2027	4 Quarter	
0002	Period of Performance From 17 Apr 2026 To 16 Apr 2027	2 Semiannual	
Option Line Item 0003	Period of Performance From 17 Apr 2027 To 16 Apr 2028	4 Quarter	
Option Line Item 0004	Period of Performance From 17 Apr 2027 To 16 Apr 2028	2 Semiannual	
Option Line Item 0005	Period of Performance From 17 Apr 2028 To 16 Apr 2029	4 Quarter	
Option Line Item 0006	Period of Performance From 17 Apr 2028 To 16 Apr 2029	2 Semiannual	
Option Line Item 0007	Period of Performance From 17 Apr 2029 To 16 Apr 2030	4 Quarter	
Option Line Item 0008	Period of Performance From 17 Apr 2029 To 16 Apr 2030	2 Semiannual	
	Period of Performance From	4 Quarter	

Option Line Item 0009	17 Apr 2030 To 16 Apr 2031		
Option Line Item 0010	Period of Performance From 17 Apr 2030 To 16 Apr 2031	2 Semiannual	

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-13	System for Award Management-Maintenance. (Deviation)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation)	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.233-3	Protest after Award. (Deviation)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation) (Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

- (i) Within 60 to 120 days prior to the end of the fifth year of the contract; and
- (ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

- (1) Was set aside for small business and has a value above the simplified acquisition threshold;
- (2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or
- (3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under 561790 NAICS Code assigned to N6945026Q0003 contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[Complete only if the offeror is a HUBZone small business concern.]* The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [☐ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

NAVY CONSTRUCTION FACILITIES MAINTENANCE

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Not applicable

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF

Pay Official DoDAAC	<u>N68732</u>
Issue By DoDAAC	<u>N69450</u>
Admin DoDAAC	<u>N44219</u>
Inspect By DoDAAC	<u>N44219</u>
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	<u>N44219</u>
Accept at Other DoDAAC	==
LPO DoDAAC	<u>N44219</u>
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

==

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.202-1	Definitions.	Jun 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.243-1	Changes-Fixed Price. (Deviation) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Jan 2026
252.232-7004	DoD Progress Payment Rates (DEVIATION 2020-O0010)	Oct 2014	Deviation 2020-O0010	Mar 2020

FAR Clauses Incorporated by Full Text

52.217-8 Option to Extend Services. (Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 10 days before the contract expires[insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 10 days of contract expiration[insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 20 days prior to contract expiration days[60days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years(months) (years).

(End of clause)

52.252-2 Clauses Incorporated by Reference.**(Feb 1998)****CLAUSES INCORPORATED BY REFERENCE (FEB 1998)**

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html ____ [Insert one or more Internet addresses]

(End of clause)

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (Mar 2025) Deviation 2025-O0004 (Mar 2025) (DEVIATION 2025-O0003 and 2025-O0004)

CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-O0003 AND 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☐ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☒ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☒ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☐ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JUN 2020) of 52.219-9.

☐ (v) Alternate IV (JAN 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (MAR 2020) of 52.219-13.

☐ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).
- ☐ (26)
- (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).
- ☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O.11755).
- ☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).
- ☐ (33) [Reserved]
- ☐ (34) [Reserved]
- ☐ (35)
- (i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-35.
- ☐ (36)
- (i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-36.
- ☐ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- ☒ (39)
- (i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41)
- (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- ☐ (47)
- (i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (JAN 2017) of 52.224-3.
- ☐ (48)
- (i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)
- (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☐ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).
- ☐ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

☐ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

☐ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Wage Determination 2015-5169 revision 28	Wage Determination	2015-5169 28	03 Dec 2025
02	Past Performance Questionnaire (PPQ)	Supporting Technical Documentation		07 Mar 2026

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		

DFARS Clauses Incorporated by Full Text

252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	(May 2021)
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PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Solicitation N6945026Q0003 is a firm-fixed contract opportunity totally set-aside for competition among small business entities certified in NAICS 561790. Only small business program participants with an active account in the System for Award Management (SAM) www.sam.gov and certified by the Small Business Administration (SBA) in the procurement NAICS can participate. Offerors must review the solicitation (SF 1449) and all supporting attachments before submitting an offer.

Interested offerors are encouraged to attend the pre-proposal site visit on March 17th, 2026, at 8:30 am CST. The site visit will be held at Naval Air Station Meridian, Mississippi in the conference room of building 427. Pre-proposal site visit attendees without an active military ID or DBIDS must contact the contracting officer. A technically sufficient offer must include, a completed SF 1449 reflecting the offered prices for the base year and outlying option years, respond to all solicitation clauses and provisions (SF 1449 or SAM), and provide proof of past performance (CPARS or PPQ).

1. Standard Form (SF) 1449:

Block 12: If your offer includes a discount please enter the information in this section of the form. If your offer does not include a discount, simply leave the block blank. Discounts may be offered but discounts will not be considered during the evaluation process.

Block 17a: Enter business entity CAGE Code, address, and telephone number.

Block 17b: If your business mailing address is different than your office address, please check this box and include the address connected to your billing/accounts receivable department.

Blocks 19-24: Leave blocks 19-24 blank and enter your proposed price in the section of the contract titled "Continuation of Supplies or Services and Prices/Costs". Each contract line-item number (CLIN) corresponds with a 365-day service year. A technically sufficient offer must include the offerors proposed unit price and yearly amount for items 0001 through 0010.

Example: 4 x \$400.00 = \$1,600.00 (quantity x unit price = item 0001 yearly price)

Example: 2 x \$400.00 = \$800.00 (quantity x unit price = item 0002 yearly price)

Example: \$1,600 + \$800.00 = \$2,400.00 (item 0001 + item 0002 = base year total price)

Blocks 30a, 30b, and 30c: Signature of company representative who is legally authorized to commit the firm to contractually binding agreements

2. Solicitation Clauses and Provisions:

Contract specific clauses and provisions requiring a response are found within pages 12 through 47 of the solicitation (SF 1449). Several clauses and provisions are strictly informational in nature and others require a response. All solicitation clauses and provisions must be considered when preparing an offer. Solicitation clauses or provisions are also referred to as "Representations and Certifications" or "Reps and Certs". A technically sufficient offer responds to clauses or provisions through one of two methods listed below.

a. Respond to each solicitation clause and provision directly in the SF 1449; or

b. Attach a copy of the FAR/DFARS report or Reps and Certs section of the offerors System for Award Management (SAM) profile, www.sam.gov.

*When utilizing option b., the offeror must pre-validated that all solicitation mandatory response clauses and provisions are addressed in the firms FAR/DFARS report (Rep and Certs).

3. Proof of Past Performance:

See FAR 52.212-2 for details regarding evaluation factors. A technically sufficient offer will include one of the two documents cited below.

a. Completed Contractor Performance Assessment Reporting System (CPARS) evaluation; or

b. Completed Form PPQ-0 (see attachment)

Solicitation N6945026Q0003 is subject to the Service Contract Labor (SCA) Standards statute. Any employee performing working in connection with contract opportunity N6945026Q0003 must be compensated at the prevailing wage rates set forth in wage determination 2015-5169, revision 28. Offerors include prevailing wages in their proposed price. A copy of wage determination 2015-5169 revision 28 accompanies the solicitation as an attachment. Signed acknowledgement of the SF 1449 infers that the offerors price includes the cost to compensate employees at the prevailing wage rates expressed in the prevailing wage determination. See FAR 52.222-41 for additional details regarding SCA requirements.

Any offers received in response to the subject solicitation will not be publicly disclosed. The winning offer must provide proof of insurance immediately following award. Payment and performance bonds are not required. All offers must be submitted electronically to, lea.m.cook.civ@us.navy.mil no later than April 5th, 2026, at 5:00pm CST. Responses received after the due date are ineligible for award. For questions related to solicitation N6945026Q0003, please contact the contracting officer, at telephone number (601) 679-2804, or via email, lea.m.cook.civ@us.navy.mil.

***** End of Section *****

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation)

(Feb 2026)

EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2026) (DEVIATION)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price/approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

Price

Past Performance (significantly less important than price)

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(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

As expressed in solicitation clause FAR 52.212-2, all offers are evaluated using lowest price technically acceptable (LPTA) methodology. Price and non-price factors will be used to evaluate offers. The non-price past performance factor is significantly less important than cost or price.

The government will evaluate prices based on the two factors stated below.

1. Price Evaluation Factor:

a. Solicitation Submittal Requirements:

- i. Provide complete pricing for all Contract Line-Item Numbers (CLINs)
- ii. The total value of all CLINs (0001 to 0010) establishes competitive range

b. Basis of Evaluation:

- i. The government will evaluate price based on the total price offered for the base year and all outlying option years. Total price is the combined value of contract line items 0001 through 0010.
- ii. In accordance with FAR 52.217-5, Evaluation of Options, the government will assess option prices as method of price evaluation although options are not guaranteed.
- iii. Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:
 1. Comparison of proposed prices received in response to the RFP.
 2. Comparison of proposed prices with the IGE
 3. Comparison of proposed prices with available historical information
- iv. Identification of unbalanced pricing including allocation to CLIN unit prices. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more prices at the functional contract line-item level is significantly overstated or understated. An offer may be rejected if the proposed price is materially unbalanced between line items within a performance period, or between line items of various option periods. Any issues or concerns in the price proposal, including pricing errors or omissions suspected by the contracting officer

2. Non-price Past Performance Evaluation Factor:

a. Solicitation Submittal Requirements:

- i. Provide documentation of past performance related to NAICS 561790- Other Services to Buildings and Dwellings. Examples of past performance are experience maintaining ventilation spaces, duct cleaning services, kitchen exhaust hood maintenance, NFPA 96 compliance history.
- ii. Proof of past performance is not strictly limited to work experience connected to a federally administered contract. Proof of past performance can be work experience connected to private industry, or, federal, state, or local government entities.
- iii. A technically acceptable offer must provide proof of past performance using one of the two methods stated below:

1. Completed evaluation record exported from the Contractor Performance Assessment Reporting System (CPARS); or
2. Completed Form PPQ-0 (see attachment)

b. Basis of Evaluation:

- i. The government will evaluate past performance using a simple "yes" or "no" format.
- ii. The government will not rank offerors past performance by size, complexity, or value.
- iii. If the lowest priced technically acceptable offer lacks past performance the Small Business Administration (SBA) must issue or authorize a certificate of competency for the firm to be considered eligible for award.

***** End of Section *****

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.223-23	Sustainable Products. (Deviation)	Feb 2026		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		
52.217-3	Evaluation Exclusive of Options.	Apr 1984		

FAR Clauses Incorporated by Full Text

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.govwww.acq.osd.mil/dpap/dars/dfarspgi/current/index.html [Insert one or more Internet addresses]

(End of provision)

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004) (Mar 2025) Deviation 2025-O0004 (Mar 2025)

OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025)
(DEVIATION 2025-O0003 AND 2025-O0004)

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. "Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications.* Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____

_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government

contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin
==	==
==	==

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN).*

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other ____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that-

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

- (i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and
- (ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name:_____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (*e.g.*, agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)